

FACTS PERTAINING TO EXPUNGEMENT MATTER

1. Petitioner was _____ in _____ County on _____ by _____, employed by the law enforcement agency known as _____ under law enforcement agency case number _____.

2. Action taken on arrest charges:

☐ Since the date given above, the _____ County Prosecutor has declined to file charges related to arrest. The following number was assigned: _____.

☐ On _____, Petitioner was _____ under Cause Number _____ in _____ County, Indiana and the following charges were filed:

A.				
B.				
C.				
D.				

3. Disposition of case:

☐ On _____, all charges were either not filed or dismissed by the State before trial.

☐ On _____, following trial, Petitioner was found “not guilty” on all charges.

☐ All _____ entered under the aforementioned cause number were vacated on appeal (appellate cause number _____), and on _____ the appellate decision became final.

4. Petitioner’s arrest, criminal charges, and/or juvenile delinquency allegations on or about _____ did not result in a conviction or juvenile adjudication;

5. Elapsed time:

☐ At least one (1) year has passed between the filing of this petition and either the date of arrest, the filing of criminal charges, the filing of juvenile delinquency allegation, or the date the appellate opinion vacating the conviction or juvenile adjudication became final;

☐ Less than one (1) year has passed between the filing of this petition and either the date of arrest, the filing of criminal charges the filing of juvenile delinquency allegation, or the date the appellate opinion vacating the conviction or juvenile adjudication became final, but the _____ County Prosecutor has consented to a shorter elapsed time period.

6. Related MC cause numbers:

☐ Court records stored under the following MC case/cause numbers pertain either to a warrantless arrest out of which the criminal matter arose, to a period of probation the supervision of which was transferred to another county, or to _____:

FINDINGS AS TO EXPUNGEMENT MATTER

1. Petitioner was _____ in _____ County on _____ by _____, employed by the law enforcement agency known as _____ under law enforcement agency case number _____.

2. Action taken on arrest charges:

☐ Since the date given above, the _____ County Prosecutor has declined to file charges related to arrest. The following number was assigned: _____.

☐ On _____, Petitioner was _____ under Cause Number _____ in _____ County, Indiana and the following charges were filed:

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3. Disposition of case:

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☐ On _____, following trial, Petitioner was found “not guilty” on all charges.

☐ All _____ entered under the aforementioned cause number were vacated on appeal (appellate cause number _____), and on _____ the appellate decision became final.

4. Petitioner’s arrest, criminal charges, and/or juvenile delinquency allegations on or about _____ did not result in a conviction or juvenile adjudication;

5. Elapsed time:

☐ At least one (1) year has passed between the filing of this petition and either the date of arrest, the filing of criminal charges, the filing of juvenile delinquency allegation, or the date the appellate opinion vacating the conviction or juvenile adjudication became final;

☐ Less than one (1) year has passed between the filing of this petition and either the date of arrest, the filing of criminal charges the filing of juvenile delinquency allegation, or the date the appellate opinion vacating the conviction or juvenile adjudication became final, but the _____ County Prosecutor has consented to a shorter elapsed time period.

6. Related MC cause numbers:

☐ Court records stored under the following MC case/cause numbers constitute records of the sentencing court or juvenile court for the purposes of this order:

The Court now finds as to Expungement Matter _____ that Petitioner’s Verified Petition for Expungement shall be GRANTED.

EXHIBIT A, Page ____ of ____:

FINDINGS AND ORDER GRANTING PETITION FOR EXPUNGEMENT OF RECORDS OF ARREST, CRIMINAL CHARGES, OR JUVENILE DELINQUENCY ALLEGATIONS PURSUANT TO IC. § 35-38-9-1 (XP Cause number: _____)

Expungement Matter _____,

PETITIONER IDENTIFICATION INFORMATION:

Full Name: _____

Alias names, DOBs and SSNs:

DOB: _____

SSN: _____

Addresses since arrest

INDIVIDUAL ARREST INFORMATION:

Criminal Cause Number: _____

Related MC cause/case numbers:

Arresting agency: _____

County/City of Arrest: _____

Law Enforcement Agency Case Number: _____

Date of Arrest: _____

Date of Decision: _____

List of Arrest Charges:

Disposition of Charges:

☐ Expunged pursuant to I.C. § 35-38-9-1

☐ NOT expunged